

INTA Practice Guides Report

Trademark Cancellations Guide

Benelux

SINGLE JURISDICTION REPORT

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks; European Union Trade Marks.
- "Cancellation" is not defined by legislation. Cancellation is not defined. In the English translation of the Benelux Convention on Intellectual Property (BCIP) the word "cancellation" is used to indicate the removal of a trademark registration from the Benelux register ("doorhaling" in Dutch; "radiation" in French). Articles 2.26 and 2.27 of the Benelux Convention on Intellectual Property (BCIP) list the circumstances in which a trademark may lapse (having the consequence that the trademark will be revoked). Articles 2.2bis and 2.2ter BCIP list the circumstances in which a trademark may be regarded as invalid (having the consequence that the trademark will be subject to nullity, taking a cancellation effect retroactively). The revocation or nullification of a trademark may be sought in court (Art. 2.28 BCIP) or in the Benelux Office for Intellectual Property (BOIP) (Art. 2.30bis et seq. BCIP). It is important to note that where the BCIP applies, the Benelux countries (Belgium, the Netherlands, Grand-Duchy of Luxemburg) must be regarded as one territorial entity so that registration, and consequently also cancellation, can relate only to Benelux as a whole.
- Cancellation actions can be filed online at the following URL: Cancellation of a Benelux trademark or an international trademark with protection in the Benelux can be filed online with the BOIP at the following URL: <https://www.boip.int/en/ip-professionals/regulations-policy/cancellation> Cancellation of European Union and international trademarks with the EUIPO can be filed at the following URL: <https://euipo.europa.eu/ohimportal/en/forms-and-filings>

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive (Article 2.2bis(1)(c) BCIP refers to signs that may serve, in trade, to designate the kind, quality, quantity, intended purpose, value, geographical origin, or the time of production of the goods or of rendering of the services, or other characteristics of the goods or services.); the mark is misleading and/or deceptive (Article 2.2bis(1)(g) BCIP states that the mark is refused or liable to be declared invalid if it is of such a nature as to deceive the public, for instance, as to the nature, quality, or geographical origin of the goods or service.); the mark lacks distinctiveness (Article 2.2bis(1)(b) BCIP states that the mark is refused or liable to be declared invalid if it is devoid of any distinctive character.); the mark is generic (Article 2.2bis(1)(d) BCIP states that the mark is refused or liable to be declared invalid if it consists exclusively of signs or indications that have become customary in the current language or in the bona fide and established practices of the trade. See also Article 2.27(1)(a) BCIP (liability to revocation if after the date on which

it was registered a trademark has become, as a result of acts or inactivity of the proprietor, the common name in the trade for a product or service in respect of which it is registered). Not only a word mark but every type of trademark has the possibility of becoming a common name (Supreme Court of the Netherlands, Jan. 20, 2012.);the mark consists of a geographical indication (Article 2.2bis(1)(c) BCIP states that the mark is refused or liable to be declared invalid if it "consists exclusively of signs or indications [that] may serve, in trade, to designate the ... geographical origin ... of the goods or of rendering of the service[s]...." The EU legislation on Protected Geographical Indications and Protected Denominations of Origin contains provisions for foodstuffs and agricultural products, and the EU legislation on wines and spirits contains provisions hindering trademarks containing such geographical indications from being registered. Article 2.2bis(1)(i) BCIP provides refusal of trademarks that are excluded from registration pursuant to EU, national, or international legislation providing for protection of designations of origin and geographical indications. Article 2.2bis(1)(j) BCIP provides the same for protected traditional terms for wine and Article 2.2bis(1)(k) for protected traditional specialties guaranteed.);the mark is functional (Article 2.2bis(1)(e) BCIP states that signs consisting exclusively of (i) the shape, or another characteristic, that results from the nature of the goods themselves, (ii) the shape, or another characteristic, of goods that is necessary to obtain a technical result, or (iii) the shape, or another characteristic, that gives substantial value to the goods shall not be registered or is liable to be declared invalid.);the mark is against public policy or principles of morality (Article 2.2bis(1)(f) BCIP states that the mark is refused or liable to be declared invalid if it is contrary to public policy or to accepted principles of morality.);the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention (Article 2.2bis(1)(h) BCIP states that the mark is refused or liable to be declared invalid if has not been authorized by the competent authorities and is to be refused or invalidated pursuant to Article 6ter of the Paris Convention.);the mark includes a badge or emblem of particular public interest (Article 2.2bis(1)(h) BCIP states that the mark is refused or liable to be declared invalid if it has not been authorized by the competent authorities and is to be refused or invalidated pursuant to Article 6ter of the Paris Convention.);the mark is used in a misleading and/or deceptive manner (Article 2.27(1)(b) BCIP states that the trademark is liable to revocation if after the date on which it was registered a trademark, as a result of the use by the proprietor or with his consent, in respect of the goods or services for which it is registered, is liable to mislead the public, particularly as to the nature, quality, or geographical origin of those goods and services.);the application for or registration of the mark was made in bad faith (Article 2.2 bis(2) BCIP states that a trademark shall be liable to be declared invalid where the application for registration of the trademark was made in bad faith by the applicant.);other absolute grounds, i.e., grounds that relate to the inherent registrability of a mark: Article 2.1(b) BCIP requires that signs be capable of being represented on the register in a manner that enables the competent authorities and the public to determine the clear and precise subject matter of the protection afforded to its proprietor.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings:there is an earlier application or registered mark (Following Article 2.2ter(1) BCIP, the trademark applied for shall not be registered if (a) it is identical with the earlier trademark and the goods or services for which registration is applied for are identical with the goods or services for which the earlier trademark is protected; or (b) because of its identity

with, or similarity to, the earlier trademark and the identity or similarity of the goods or services covered by the trademarks there exists a likelihood of confusion on the part of the public in the territory in which the earlier trademark is protected; the likelihood of confusion includes the likelihood of association with the earlier trademark.);the application for or registration of the mark was made in bad faith (Following Article 6septies of the Paris Convention and Article 2.2bis(2) BCIP, it shall be liable to be declared invalid where the application for registration of the trademark was made in bad faith by the applicant.);the mark is notorious or well known (Article 6bis of the Paris Convention) (Following Article 2.2ter(3)(a) BCIP, a trademark shall, in case an opposition is filed, not be registered or, if registered, shall be liable to be declared invalid where it is identical with, or similar to, an earlier trademark irrespective of whether the goods or services for which it is applied or registered are identical with, similar to or not similar to those for which the earlier trademark is registered, where the earlier trademark has a reputation in the Benelux territory or, in the case of an EU trademark, has a reputation in the European Union and the use of the later trademark without due cause would take unfair advantage of, or be detrimental to, the distinctive character or the repute of the earlier trademark.);the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention) (Following Article 2.2ter(3)(b) BCIP, a trademark shall be liable to be declared invalid where an agent or representative of the proprietor of the trademark applies for registration thereof in his own name without the proprietor's authorization, unless the agent or representative justifies his action.);other relative grounds, i.e., grounds that are based on another party's proprietary rights: Following Article 2.2ter(3)(c) BCIP, a trademark shall be liable to be declared invalid to the extent that, pursuant to EU legislation or the internal law of one of the Benelux countries providing for protection of designations of origin and geographical indications. This is the case if an application for a designation of origin or a geographical indication had already been submitted in accordance with EU legislation or the internal law of one of the Benelux countries prior to the date of application for registration of the trademark or the date of the priority claimed for the application, subject to its subsequent registration and that designation of origin or geographical indication confers on the person authorized under the relevant law to exercise the rights arising therefrom the right to prohibit the use of a subsequent trademark.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- Other than the absolute or relative grounds listed above and/or the non-use grounds listed below, there are no other grounds that may be raised in cancellation proceedings.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings. Non-use is a ground for revocation of the trademark. (This means that the effects of the revocation will be ex nunc.)
- In relation to cancellation for non-use, "use" is defined as: Definition 1: "To determine whether a use can be considered 'genuine use,' it is necessary to take into account, in their mutual relations, all the facts and circumstances specific to the case, such as: the nature, extent, frequency, regularity, and duration of the use; the nature of the product; the nature and size of the business. It is decisive that, from all these circumstances, taking into account what is customary and commercially justified in

the relevant business sector, it emerges that the use aims to create or maintain a market for the marked products and that it is not solely intended to preserve the right to the trademark."Definition 2: "A trademark shall also be liable to revocation if no genuine use has been made of it in accordance with Article 2.23bis CBPI."

- The definition of "use" provided above is derived both from statute, regulation or administrative rule and from case law: Definition 1: Benelux Court of Justice, January 27, 1981, Case 80/1, Turmac v. Reynolds. Definition 2: Article 2.27(2) BCIP. See also ECJ, March 11, 2003, Case C-40/01, Ansul v. Ajax; ECJ, January 27, 2004, Case C-259/02, La Mer Technology v. Laboratoires Goemar-Laboratoire de la Mer; ECJ, May 11, 2006, Case C-416/04 P, The Sunrider v. OHIM—VITAFRUIT; ECJ, June 14, 2007, Case C-246/05, Armin Häupl v. Lidl Stiftung; ECJ, April 18, 2013, Case C-12/12, Colloseum Holding AG v. Levi Strauss & Co.; ECJ, July 13, 2013, Case C-252/12, Colloseum Holding AG v. Levi Strauss & Co.; ECJ, October 11, 2017, Case-501/15 P, EUIPO v. Cactus. See also EUIPO, January 11, 2019, n° 14 788 C, EUIPO v. McDonalds—BIG MAC.
- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor.
- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: five years.
- The consequences of use being interrupted are: The cancellation of the trademark if there has been no use during five years counting from the interruption. The mark is vulnerable to an action for revocation of the trademark if the use has been suspended for an uninterrupted period of five years. Also, where a mark is at risk of revocation for non-use, the proprietor may not enforce his rights against a third party that files a conflicting mark while his own mark is vulnerable to revocation, nor may he oppose the use of this conflicting mark as he will risk a counterclaim for cancellation of his earlier rights.

II. Grounds — E. Multiple Grounds

- An application for cancellation may be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds).
- The advantages of filing an action based on multiple grounds are as follows: There are more chances of success of the action.
- If an action is based on multiple grounds and the action could be disposed of on one ground, the other grounds will not be considered.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks.
- Grounds for cancellation are not the same in respect of European Union Trade Marks as they are for national marks in that: Article 60.1(c) Regulation (EU) 2017/1001: An EU Trade Mark shall be declared invalid on application to the Office or on the basis of a counterclaim in infringement proceedings: (c) where there is an earlier right as referred to in Article 8(4) and the conditions set out in that paragraph are fulfilled; (Article 8.4 Regulation (EU) 2017/1001 states that upon opposition by the proprietor of a non-registered trademark or of another sign used in the course of trade of more than mere local significance, the trademark applied for shall not be registered where and to the extent that, pursuant to Union legislation or the law of the Member

State governing that sign: (a) rights to that sign were acquired prior to the date of application for registration of the EU Trade Mark, or the date of the priority claimed for the application for registration of the EU Trade Mark; (b) that sign confers on its proprietor the right to prohibit the use of a subsequent trademark. Article 60.2 Regulation (EU) 2017/1001: An EU Trade Mark shall also be declared invalid on application to the Office or on the basis of a counterclaim in infringement proceedings where the use of such trademark may be prohibited pursuant to another earlier right under the EU legislation or national law governing its protection, and in particular: (a) a right to a name; (b) a right of personal portrayal; (c) a copyright; (d) an industrial property right.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the proceedings.

III. Forum — A. Forum

- The forum for cancellation proceedings is the same regardless of the grounds on which the proceedings are brought. Cancellation proceedings on all grounds may be brought before the following court or other judicial tribunal: Following Article 2.28 BCIP, cancellation proceedings on all grounds may be brought before the courts of one of the three member states of the Benelux (i.e., Belgium, the Netherlands, and the Grand-Duchy of Luxembourg). Specifically for Belgium, according to Article 574 (18°) of the Code on Judicial Proceedings, only the Court of Enterprises ("Ondernemingsrechtbank" in Dutch; "Tribunal de l'Entreprise" in French) is competent to hear claims relating to trademarks. Moreover, in Belgium, a geographically limited number of courts hear trademark cases: in the Dutch language: Brussels, Antwerp, and Ghent; in the French language: Brussels, Mons, and Liège. Cancellation proceedings on all grounds may be brought before the following administrative body: Following Article 2.30bis BCIP, an application for invalidation or revocation of the registration of a trademark on all grounds may be filed with the Benelux Office for Intellectual Property ("Benelux-Bureau voor de Intellectuele Eigendom" in Dutch; "Office Benelux pour la Propriété Intellectuelle" in French).
- The administrative body/bodies listed above is/are not independent of the trademark registry.

IV. Standing — A. On Basis of Grounds

- The parties that have legal standing to apply for cancellation vary, depending on the grounds for the cancellation.
- For cancellations based on absolute grounds, the following parties have standing: any interested person. Legal interest is required. Legal interest is a general requirement for any action brought with the courts. Following Article 2.28(1) BCIP, any interested party can invoke the nullity of a trademark. The term must be interpreted broadly; however, there are limits (see Judgment C/15/202007, Gerechtshof Amsterdam, Dec. 1, 2015). The existence of an earlier trademark registration is not required in order to show interest. For cancellation proceedings brought before the BOIP, legal interest is equally required. Following Article 2.30bis(1)(a) BCIP, an application for invalidation or revocation of the registration of a trademark may be filed with the BOIP by any natural or legal person and any group or body set up for the purpose of representing the interests of manufacturers, producers, suppliers of services, traders, or consumers, and which, under the terms of the law governing it,

has the capacity to sue in its own name and to be sued. a legal representative acting “in the public interest.” Following Article 2.28(1) BCIP, the Public Prosecutor can invoke the nullity of a trademark. An association, such as a nonprofit organization, may act in the public interest, e.g., consumer protection. Following Article 2.30bis(1)(a) BCIP, an application for invalidation or revocation of the registration of a trademark may be filed with the BOIP by any natural or legal person and any group or body set up for the purpose of representing the interests of manufacturers, producers, suppliers of services, traders, or consumers, and which, under the terms of the law governing it, has the capacity to sue in its own name and to be sued.

- For cancellations based on relative grounds, the following parties have standing: any interested person. Legal interest is required. Following Article 2.28(2) BCIP, any interested party may invoke the invalidity where the proprietor of the earlier trademark referred to in Article 2.2ter(1) and (3)(a) or (b) or the person who, under the applicable law, is entitled to exercise the rights referred to in Article 2.2ter(3)(c), participates in the proceedings. other: The above applies only to cancellation proceedings before the courts. For cancellation proceedings brought before the BOIP, the following parties have standing: only an interested party. Legal interest is required. Following Article 2.30bis(1)(b) BCIP, whether an application for invalidation or revocation of the registration of a trademark may be filed with the BOIP depends on the case: (i) in the case referred to in Article 2.2ter(1) and (3)(a), by the proprietors of earlier trademarks and the licensees authorized by those proprietors; (ii) in the case referred to in Article 2.2ter(3)(b), i.e., a trademark filed by an agent, by the proprietors of trademarks referred to therein. In this case, the assignment referred to in Article 2.20ter(1)(b) may also be requested; (iii) in the case referred to in Article 2.2ter(3)(c), by persons authorized, under the applicable law, to exercise the rights linked to a geographical indication.

- For cancellations based on non-use grounds, the following parties have standing: any interested person. Legal interest is required. Legal interest is a general requirement to bring an action before the courts. Article 2.28(4) (cancellation proceedings before the courts) and Article 2.30bis(1)(a) BCIP (cancellation proceedings before the BOIP). The term must be interpreted broadly; however, there are limits (see Judgment C/15/202007, Gerechtshof Amsterdam, Dec. 1, 2015). The existence of an earlier trademark registration is not required in order to show interest. Following Article 2.28(4) BCIP, revocation of the right in a trademark may be invoked by any interested party. This does not result in a formal requirement or check of legal interest being present. a legal representative acting “in the public interest.” Following Article 2.30bis(1)(a) BCIP, an application for invalidation or revocation of the registration of a trademark may be filed with the BOIP by any natural or legal person and any group or body set up for the purpose of representing the interests of manufacturers, producers, suppliers of services, traders, or consumers, and which, under the terms of the law governing it, has the capacity to sue in its own name and to be sued.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a “person” is defined as: both natural and juridical persons.
- For purposes of standing, an “interested person” is defined as: other: Interested person is interpreted broadly; it is sufficient that the party prove a simple moral interest.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may apply jointly for cancellation, regardless of the grounds for cancellation.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may be sought by a defendant. A counterclaim for cancellation can be brought in the legal submissions of the defendant in all proceedings on the merits. In summary proceedings for a preliminary injunction a cancellation action is not possible, but invalidity arguments can be brought as a defense.

V. Representation — A. Qualifications

- The applicant can choose whether to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings. Article 2.15 regarding "Representation in objection-related proceedings" was canceled by the Protocol of 22 March 2013 on the modification of the Implementing Regulations under the Benelux Convention on Intellectual Property.
- The representative need not be domestic, i.e., with an office in the jurisdiction. A representative acting with the BOIP must have its place of residence or registered office in the European Economic Area (Rule 3.6.2. Implementing Regulations).
- There are no additional professional qualifications that are required of a representative in cancellation proceedings.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney need not be provided to a representative by an applicant in cancellation proceedings. However, during cancellation proceedings before the Benelux Office for Intellectual Property, if a representative requests the Office to surrender a registration, the representative must submit a power of attorney to that effect, according to Article 3.7.2 of the Implementing Regulations under the Benelux Convention on Intellectual Property. Also, during cancellation proceedings before the Benelux Office for Intellectual Property, if the Office has any reason to doubt the representative's authorization concerning any activity whatsoever, it may request the submission of a power of attorney. The period for submitting a power of attorney is at least one month and will be extended by one month on request. Should a timely response not be received, the request will not be considered, according to Article 3.7.3 of the Implementing Regulations under the Benelux Convention on Intellectual Property.
- There are no notarization/legalization requirements for a power of attorney form in cancellation proceedings.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- There is never a deadline for bringing cancellation proceedings, regardless of the grounds for cancellation.

VI. Commencement — C. Statute of Limitations

- The statute of limitations or acquiescence provisions that will prevent cancellation vary, depending on the grounds for cancellation. For proceedings brought on absolute grounds, the statute of limitations or acquiescence provision is: There is no statute of limitations or acquiescence provision. For proceedings brought on relative grounds, the statute of limitations or acquiescence provision is: Article 2.30septies BCIP (Where the proprietor of an earlier trademark as referred to in Article 2.2ter(2) or (3)(a) has acquiesced, for a period of five successive years, in the use of a later registered trademark while being aware of such use, that proprietor shall no longer be entitled on the basis of the earlier trademark to apply for a declaration that the later trademark is invalid in respect of the goods or services for which the later trademark has been used, unless registration of the later trademark was applied for in bad faith.). For proceedings brought on non-use grounds, the statute of limitations or acquiescence provision is: There is no statute of limitations or acquiescence provision.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible, regardless of the grounds for cancellation. Following Article 2.30nonies(1) BCIP, invalidity or revocation shall apply to the sign constituting the trademark in its entirety. Nevertheless, Article 2.30nonies(3) authorizes partial cancellation concerning the goods and services for which the trademark is registered if the cause of invalidity or revocation affects only a part of these goods and services. For opposition, Article 2.16(4) BCIP states that the BOIP can refuse to register the trademark in full or in part.
- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: Before the Benelux Office for Intellectual Property, the average duration of cancellation proceedings is approximatively between six months and one and a half years depending on the circumstances of the case.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: In Belgium, when the judge takes the case under advisement to render judgment, he/she sets the date for the pronouncement of the decision, which must in principle occur within one month from the closing of the hearing (Art. 770 of the Belgian Judicial Code). However, this one-month deadline is not mandatory.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees; statutory or regulatory fees.
- Official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation, as follows: According to Article 1.28 of the

Implementing Regulations, read together with Article 2.16(3) BCIP, for opposition proceedings, a refund is possible at an amount equaling 60 percent of the fee payable for the opposition if the withdrawal takes place before the procedure commences, and at an amount equaling 40 percent of the fee payable for the opposition if it takes place after that time. Invalidity and revocation proceedings: According to Article 1.44 of the Implementing Regulations, read together with Article 2.30ter(3) BCIP, a refund is possible at an amount equaling 50 percent of the fee payable for the submission of the application for invalidation or revocation. For proceedings before the courts, no official fees are refundable if an application for cancellation is withdrawn.

- If an application for cancellation is based on multiple grounds, additional official fees are payable as follows: Proceedings before the courts: If an application for cancellation is based on multiple grounds, no additional official fees are due. Proceedings before the BOIP: If an application for cancellation is based on multiple grounds, additional official fees are payable as follows: according to the Annex to the Implementing Regulations, the base fee is EUR 1,420 and then an extra EUR 142 for every ground above the third.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- No documents need be notarized or legalized in cancellation proceedings.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings vary, depending on the grounds for cancellation. The documentation and procedures to initiate cancellation proceedings based on absolute grounds are as follows: Before the courts: The procedure must be initiated by a writ of summons. There are no formal requirements with respect to the documentation necessary to support the claim. Parties decide which documents they file as exhibits. This will include excerpts from the trademark register concerning the trademark at stake. Before the Benelux Office for Intellectual Property: The application for invalidation or revocation referred to in Article 2.30bis of the Convention should be submitted in a document containing the information mentioned in Article 1.30 of the Implementing Regulations under the Benelux Convention on Intellectual Property. This may be done electronically. There are no formal requirements with respect to the documentation necessary to support the claim. The documentation and procedures to initiate cancellation proceedings based on relative grounds are as follows: Before the courts: The procedure must be initiated by a writ of summons. The plaintiff must submit the proof of its earlier rights when filing its exhibits. Before the Benelux Office for Intellectual Property: The application for invalidation or revocation referred to in Article 2.30bis of the Convention should be submitted in a document containing the information mentioned in Article 1.30 of the Implementing Regulations under the Benelux Convention on Intellectual Property. This may be done electronically. The plaintiff must submit the proof of its earlier rights. The documentation and procedures to initiate cancellation proceedings on non-use grounds are as follows: Before the courts: The procedure must be initiated by a writ of summons. The plaintiff should submit reasonable proof of non-use but may ask to reverse the burden of proof if evidence of non-use is not available. Before the Benelux Office for Intellectual Property: The application for invalidation or revocation referred to in Article 2.30bis of the Convention should be submitted in a document containing the information mentioned in Article 1.30 of the Implementing Regulations under the Benelux Convention on Intellectual Property. This may be done electronically. The plaintiff must submit reasonable proof of non-use. The documentation and procedures to initiate cancellation proceedings based on grounds other than absolute, relative or

non-use grounds are as follows: Before the courts: The procedure must be initiated by a writ of summons. There are no formal requirements with respect to the documentation necessary to support the claim. Parties decide which documents they file as exhibits.

XI. Discovery — A. Interrogatories

- No party may request that any other party answer written questions, under oath ("Interrogatories").

XI. Discovery — B. Document Requests

- Any party may request that any other party produce documents in response to written document requests ("Document Requests"). Generally speaking, if there are serious indications that any party to the case or any third party possesses a document containing any relevant proof, the judge may order the submission of such document. The procedure applicable to the production of documents is regulated by the national law of each of the Benelux countries.
- The general rules concerning the timing, number and scope of Document Requests are: In Belgian judicial proceedings a request can be filed with the court. The defendant can answer this request. It is for the court to decide and give an order to produce a document. This can be done at any stage of the proceedings. The court can give an interim decision or decide the matter in its judgment after having heard the case.
- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the procedure by which the requesting party can compel compliance is as follows: Generally speaking, if there are serious indications that any party to the case or any third party possesses a document containing any relevant proof, the judge may order the submission of such document. The procedure applicable to the production of documents is regulated by the national law of each of the Benelux countries.
- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the consequences are as follows: If the submission of documents was ordered by the judge upon the payment of a penalty, the requested party will have to pay the penalty. In any case, the judge may condemn the requested party to damages.
- The grounds on which the requested party may justify its refusal to produce documents in response to Document Requests, in whole or in part, and the circumstances in which these grounds are applicable are as follows: Except for the statutory rules on legal privilege, there are no specific grounds upon which such refusal could be justified. However, general grounds such as confidentiality may be put forward.
- Documents obtained in response to Document Requests may be used as evidence in the action.

XI. Discovery — C. Depositions

- Any party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions"). Depositions by witnesses are usually not used as evidence in trademark cases, but, theoretically, upon request of any party, the judge may hear witnesses. The judge is the only person allowed to ask questions to the witnesses, on its own motion or upon submission by the parties. Cross-examination under oath does not exist under Belgian law.

- The rules concerning the timing, location, subject and permitted scope of inquiry of a Deposition are as follows: Proceedings before the courts: The judge will specify the timing, location, subject, and scope of inquiry of the deposition. Proceedings before the BOIP: Depositions are not available.
- If the requested party fails to provide a requested witness for a Deposition or fails to answer certain questions during a Deposition, there is no procedure by which the requesting party can compel compliance. This is true before the courts. This is not applicable during proceedings before the Benelux Office for Intellectual Property.
- There are no consequences if the requested party fails to provide a requested witness for a Deposition or fails to answer certain questions during a Deposition. This is true for proceedings before the courts. This is not applicable during the cancellation proceedings before the Benelux Office for Intellectual Property.
- There are no grounds on which the requested party may justify its refusal to appear for or to answer questions in a Deposition. This is true for proceedings before the courts. This is not applicable during the cancellation proceedings before the Benelux Office for Intellectual Property.
- Answers provided during Depositions may be used as evidence in the action. This is true for proceedings before the courts. This is not applicable during the cancellation proceedings before the Benelux Office for Intellectual Property.

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: When non-use is used as a defense: In proceedings for a declaration of invalidity based on a registered trademark with an earlier filing date or priority date, if the proprietor of the later trademark so requests, the proprietor of the earlier trademark shall furnish proof that, during the five-year period preceding the date of the application for a declaration of invalidity, the earlier trademark has been put to genuine use, as provided for in Article 2.23bis, in connection with the goods or services in respect of which it is registered and which are cited as justification for the application, or that there are proper reasons for non-use, provided that the registration process of the earlier trademark has at the date of the application for a declaration of invalidity been completed for not less than five years (Art. 2.30quinquies(1) BCIP).

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory. In the absence of written arguments from the applicant, examination of the application will be abandoned (Rule 1.31(1.c) of the Implementing Regulations under the Benelux Convention on Intellectual Property).
- The deadline for the applicant to submit written arguments is determined by statute, rule or regulation and is: The applicant has a period of two months to provide arguments and supporting documents substantiating the application. In the absence thereof, examination of the application will be abandoned (Rule 1.31 (1.c) of the Implementing Regulations under the Benelux Convention on Intellectual Property). The deadline for the respondent to submit written arguments is determined by statute, rule or regulation and is: The applicant has a period of two months to respond in writing to the applicant's arguments (Rule 1.1 (1.d) of the Implementing Regulations under the Benelux Convention on Intellectual Property). The deadline for submitting written arguments is determined by scheduling order or ruling of the court, other judicial tribunal or administrative body and is: For the refusal of registration from the Office, the deadline for the applicant to submit written arguments varies from

one month to six months (Art. 1.12, para. 1 of the Implementing Regulations under the Benelux Convention on Intellectual Property). In court proceedings in Belgium there is a statutory deadline of one month to file written arguments and respond, but this deadline is not mandatory. The court can impose a mandatory schedule in a ruling at the request of a party. The parties can agree to a schedule which will be confirmed in a court order and becomes mandatory.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are not available to the applicant to file written arguments. If the deadlines have been determined by the court, extensions are not available unless the parties agree otherwise.
- Extensions of time are not available to the respondent to file written arguments. If the deadlines have been determined by the court, extensions are not available unless the parties agree otherwise.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings. An oral hearing may be held ex officio or at the parties' request if the Office deems there to be grounds for a hearing (Rules 1.31(1.d), 1.39, and 1.23 of the Implementing Regulations under the Benelux Convention on Intellectual Property).
- The determination of whether oral hearings will take place is made by: The determination of whether oral hearings will take place is made by the Office or at the parties' request if the Office deems there to be grounds for a hearing (Rules 1.31(1.d), 1.39, and 1.23 of the Implementing Regulations under the Benelux Convention on Intellectual Property).

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: As a rule, the plaintiff must submit written evidence of the facts on which its claim in cancellation is based. There are no formal requirements with respect to this evidence.
- Evidence must be submitted to: Evidence must be submitted to the Office and the opposing party.
- Evidence must be submitted by the following deadline: Evidence must be submitted at the same time as the written arguments.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: The plaintiff must submit written evidence of the facts on which its cancellation claim is based—in particular, proof of its earlier right (e.g., trademark registration, extract from the Register of Companies).
- Evidence must be submitted to: Evidence must be submitted to the Office and the opposing party.
- Evidence must be submitted by the following deadline: Evidence must be submitted at the same time as the written arguments.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: There are no formal requirements with respect to this evidence. Usually, the

applicant produces a survey that establishes non-use and claims the reverse of the burden of proof on this basis.

- Evidence must be submitted to: Evidence must be submitted to the Office and the opposing party.
- Evidence must be submitted by the following deadline: Evidence must be submitted at the same time as the written arguments.

XV. Evidence — E. Applicant's Proof of Use

- The applicant is not required to submit proof of use of the mark on which the cancellation is based. The applicant is not required to submit proof of use of the mark on which the cancellation is based unless the defendant so requests for trademarks registered since more than five years (Arts. 2.16bis, 2.23ter, and 2.30quinquies BCIP). Otherwise, it is sufficient to have a simple moral right ("an interested party").

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time for the applicant's submission of evidence are not possible. In Belgium, court proceedings are not "front loaded," allowing the parties to complete their evidence (exhibits) when filing written submissions.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: Evidence may be submitted at a later stage in the proceedings as long as the case is still under examination and parties have the right to respond in written submissions.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is optional.
- Evidence in reply must be submitted by the following deadline: The deadline is not provided by the Benelux Convention but by the national laws of each of the Benelux countries. In Belgium, for instance, respondent's evidence in reply must be submitted to the applicant together with the briefs of arguments of the respondent. Parties must submit their evidence to the court two weeks before the oral hearing.
- The following extensions of time for the respondent's submissions are available: Evidence must be submitted together with the written arguments. Accordingly, when the deadlines for the written arguments and for submitting evidence have been determined by the court, extensions are not available unless the parties agree otherwise. If such deadlines have not been determined by the court, the deadlines are not mandatory and may thus be extended.
- No official fees are payable to obtain extensions.
- Petitioner cannot demand that respondent provide additional particulars relating to the respondent's proffered evidence.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; catalogues; packaging; labels; price lists; advertisements; written statements; market surveys; use of the mark on the Internet (Consideration will be given to online sales and to the trademark owner's efforts to promote its products under the trademark within the Benelux countries by means of online advertising. However, maintaining a website online, without any referencing of it and without using

it to really and actively promote the sale of products covered by the trademark at stake cannot be considered as a genuine use of this trademark. In a judgment of October 21, 2015, the Court of Midden-Nederland ruled that the use made by an enterprise of its trademark on its website, emails, and bills must be considered as use as a trade name (Docket No. C/16/377491/HA ZA 14-756).); maintenance of a website; use of the mark on a social media site. other: An affidavit from those working for the trademark owner could be taken into consideration where it is corroborated by other evidence. The proof of use should contain evidence of the place, duration, extent, and manner of use of the trademark for the goods or services designated by it.

- In assessing whether "use has been made," sufficient use is demonstrated by: the actual use of the trademark in the relevant market during the five-year period preceding the date of the application for revocation. All the relevant facts and circumstances of the case can be taken into account to establish whether use has been made.

- The following factors are considered when determining whether a mark has been sufficiently used: the nature of the goods or services at issue; market characteristics; the scale and frequency of use of the mark; export use; other: All the relevant facts and circumstances of the case (Benelux Court of Justice, Case 80/1, Jan. 27, 1981, *Turmac v. Reynolds*).

- The respondent cannot demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: Upon request of the petitioner, the court, other judicial tribunal or administrative body must enter a default judgment in favor of the petitioner, except for the possibility to consider arguments taken from laws of public order.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: The defendant must prove a longstanding use of the trademark as a result of which the relevant class of consumers, or at least a significant proportion thereof, identify goods as originating from a particular undertaking because of the trademark. In particular, the following criteria may be taken into account: the market share held by the mark; how intensive, geographically widespread, and longstanding the use of the mark has been; the amount invested by the undertaking in promoting the mark; the proportion of the relevant class of persons who, because of the mark, identify goods as originating from a particular undertaking; and statements from chambers of commerce and industry or other trade and professional associations.

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: Facts and circumstances that cannot be controlled by the defendant, that are not part of the normal business risks, and as a result of which genuine use of the mark has become impossible or could not reasonably have been required from the holder or its licensee.

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision may include a formal monetary award against the losing party, regardless of the grounds for cancellation. The following may be granted by a cancellation decision: damages if proven; attorney fees; procedural costs.
- Monetary awards are based on: actual losses; statute/schedule/tariff.
- The amount of a monetary award is likely to be influenced by the following circumstances: As a general rule, the granting of damages is based on any actual losses the extent of which must be proven by the plaintiff. It will be relevant if the canceled trademark has been used and caused harm to the plaintiff (infringement). If the matter concerns cancellation only, it is unlikely any damages would be awarded.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is entitled to recover attorney fees in cancellation proceedings, regardless of the grounds for cancellation. The award of attorney fees and costs is admitted by the Belgian law since the decision of the Supreme Court of September 2, 2004. It is admitted but limited to fixed sums by the law of April 21, 2007. Article 14 of Directive 2004/48/EC on the enforcement of intellectual property rights also provides that "reasonable and proportionate legal costs and other expenses incurred by the successful party shall, as a general rule, be borne by the unsuccessful party, unless equity does not allow this." The Netherlands has transposed the text of Article 14 of the Directive literally (Art. 1019h Rv).
- The award of attorney fees in cancellation proceedings is: mandatory. Before the Benelux Office for Intellectual Property, Article 2.30ter(2) BCIP provides that "Costs shall be borne by the unsuccessful party. They shall be fixed in accordance with the provisions of the implementing regulations. Costs shall not be due if the application is only partially successful." These costs will be determined at an amount equaling the basic fee for the submission of the application for invalidation or revocation (Rule 1.44(2) of the Implementing Regulations under the Benelux Convention on Intellectual Property). In Belgium, the basic amount to which the successful party is entitled is EU 1800. However, the judge may, at the request of one of the parties, either reduce or increase this amount without exceeding the maximum and minimum amounts provided by the law (Art. 1022 of the Belgian Judicial Code). The minimum and maximum amounts depend on the nature of the case.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid against all third parties, regardless of the grounds on which the proceedings were brought.
- A decision ordering cancellation of a mark takes effect: When a judge holds that a trademark right is invalid, he/she shall order the cancellation of the trademark registration ex officio. The cancellation will be carried out by the BOIP at the request of the most diligent party.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application, regardless of the grounds for cancellation.
- Withdrawal of a cancellation application does not require the approval of the court, other judicial tribunal or administrative body; termination is automatic. The withdrawal of claim will be confirmed in a judgment by the court.
- Withdrawal of a cancellation application does not require the approval of the other party to the proceedings; termination is automatic regardless of the grounds for cancellation. Withdrawal of claim (with prejudice) does not require the approval of the

defendant. The defendant can maintain a counterclaim. However, withdrawal of procedure (without prejudice) does require approval of the defendant if the defendant filed written arguments.

- When cancellation applications are withdrawn, the cost of the proceedings is borne by: Before the BOIP, if a cancellation application has been withdrawn, part of the fees paid shall be refunded (Art. 2.30ter BCIP). The refund fees are at an amount equaling 50 percent of the fee payable for the submission of the application for invalidation or revocation (Rule 1.44(1) of the Implementing Regulations under the Benelux Convention on Intellectual Property).

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: An appeal against a final decision of BOIP may be lodged before the Benelux Court of Justice within a period of two months (counting from the decision) to obtain its annulment or revision (Art. 1.15bis BCIP). In Belgium, an appeal against a judicial decision must be lodged within a period of one month counting from the service of the decision.

XIX. Appeals — B. Forum

- Regardless of the grounds for cancellation, appeals are heard by the following court or other judicial tribunal: Against a decision of a court: This is different for each of the three member states of the Benelux. To know which one of the three is competent, the decisive factor is the address of the applicant or the representative at the time of the deposit. The fact that afterwards a transfer of the trademark rights to a party in another Benelux country took place is not a relevant element. (BenGH, Oct. 6, 2011, Intres Belgium/BOIE). In Belgium, appeals are brought before the Court of Appeal ("Hof van Beroep" in Dutch) dependent on where the action was launched in the first instance (Brussels, Antwerp, Liège, Mons, or Ghent). the following administrative body: Against a decision of the BIOP: the Benelux Court of Justice ("Benelux-Gerechtshof" in Dutch).

XIX. Appeals — C. New Evidence

- New evidence may be submitted on appeal. Before the Benelux Court, as a rule, no new evidence will be accepted. In court proceedings in Belgium new evidence may be submitted.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: Between EUR 500 and 1,500 (Belgium).
- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision.
- An appeal decision can include a monetary award against the losing party even if the earlier decision did not include a monetary award. The approximate award, in local currency, would be: This is determined on a case-by-case basis according to actual losses, the extent of which must be proven by the plaintiff.

XIX. Appeals — E. Scope

- An appeal is limited to points of law.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: the Supreme Court of Belgium ("Hof van Cassatie"), the Netherlands ("Hoge Raad") or Luxembourg ("Cour de Cassation"), but the appeal may concern only violations of the law (Art. 608 of the Belgian Judicial Code). Details regarding the deadlines and fees for further appeal are as follows: In Belgium, the period within which a further appeal must be lodged, unless the law provides for a shorter period, is three months (Art. 1073 of the Belgian Judicial Code). This period begins, in respect of a person, on the day the judgment is served on him/her by a bailiff and, exceptionally, in the cases provided for by the law, on the day the judgment is notified to him/her by judicial or registered letter. Regarding the fees, it costs between EUR 160 and 300 per defendant on whom the further appeal is to be served and then an additional registration fee of EUR 375 to be included in the docket of the Supreme Court (attorney fees not included).
- There is no alternative procedure to an appeal. However, the parties can try to reach a settlement agreement.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, if an applicant is successful in obtaining cancellation, the legal consequences of the cancellation will depend on the grounds on which the proceedings were brought (see below).
- If an applicant succeeds in obtaining cancellation on absolute grounds: the mark is considered as if it were never registered. It is locally referred to as a nullity.
- If an applicant succeeds in obtaining cancellation on relative grounds: the mark is considered as if it were never registered. It is locally referred to as an invalidation.
- If an applicant succeeds in obtaining cancellation on non-use grounds: Other: The mark is considered as having been validly registered until the date set by the court, when the factual conditions that led to the cancellation for non-use were met.
- If an applicant succeeds in obtaining cancellation on grounds other than absolute, relative or non-use grounds: the mark is considered as having been validly registered until the date of the decision to cancel the mark. This would be the case for example for voluntary removal from the register ("radiation").

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: Subject to the provisions relating either to claims for compensation for damage caused by negligence or lack of good faith on the part of the proprietor of the trademark, or to unjust enrichment, the retroactive effect of revocation or invalidity of the trademark does not affect any contract concluded prior to the revocation or invalidity decision, in so far as it has been performed before that decision; however, repayment, to an extent justified by the circumstances, of sums paid under the relevant contract may be claimed on grounds of equity.
- The consequences for past licenses if a mark is cancelled are: Subject to the provisions relating either to claims for compensation for damage caused by negligence or lack of good faith on the part of the proprietor of the trademark, or to unjust enrichment, the retroactive effect of revocation or invalidity of the trademark does not affect any contract concluded prior to the revocation or invalidity decision, in

so far as it has been performed before that decision; however, repayment, to an extent justified by the circumstances, of sums paid under the relevant contract may be claimed on grounds of equity.

- The consequences for past contracts if a mark is cancelled are: Subject to the provisions relating either to claims for compensation for damage caused by negligence or lack of good faith on the part of the proprietor of the trademark, or to unjust enrichment, the retroactive effect of revocation or invalidity of the trademark does not affect any contract concluded prior to the revocation or invalidity decision, in so far as it has been performed before that decision; however, repayment, to an extent justified by the circumstances, of sums paid under the relevant contract may be claimed on grounds of equity.

XXI. Notification to TM Office — A. Notification to TM Office

- Following a decision to cancel a mark, the Trademark Office must be formally notified of the cancellation, regardless of the grounds on which the proceedings were brought. The following party has the responsibility to notify the Office: A request asking for modification of entries in the register concerning a Benelux registration to be changed should be addressed by the claimant of the cancellation on the basis of documentary evidence (Art. 3.1 of the Implementing Regulations under the Benelux Convention on Intellectual Property). The deadline to make the notification is: There is no deadline to make the notification.
- The consequences of failing to meet the deadline to notify the Trademark Office are: As noted above, there is no deadline.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- After a cancellation, depending upon the grounds on which the proceeding was based, an application to register the mark may be refiled: only by a particular party to the action (In the event of cancellation on relative grounds, an application to register the trademark may be refiled by the holder of the earlier right only.); by either of the parties to the action; by a third party (In the event of revocation for non-use, an application to register the trademark may be refiled by any party, including third parties.).
- There are no time limits for refiling following the cancellation of a mark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: trademarks that are described as such when the marks are applied for and are capable of distinguishing the goods or services of the members of an association that is the proprietor of the marks from the goods or services of other undertakings. Associations of manufacturers, producers, suppliers of services, or traders, which, under the terms of the law governing them, have the capacity in their own name to have rights and obligations, to make contracts or accomplish other legal acts, and to sue and be sued, as well as legal persons governed by public law, may apply for collective marks (Art. 2.34bis(1) BCIP). Also, by way of derogation from Art. 2.2bis(1)(c) BCIP, signs or indications that may serve, in trade, to designate the geographical origin of the goods or services may constitute collective marks (Art. 2.34bis(2) BCIP).
- There are certain unique provisions in the law of this jurisdiction in relation to the cancellation of collective marks on absolute, relative, non-use or other grounds, as follows: Revocation: According to Article 2.34octies BCIP, in addition to the grounds

for revocation provided for in Article 2.27, the rights of the proprietor of a collective mark shall be revoked on the following grounds: the proprietor does not take reasonable steps to prevent the mark being used in a manner that is incompatible with the conditions of use laid down in the regulations governing use, including any amendments thereto mentioned in the register; the manner in which the mark has been used by authorized persons has caused it to become liable to mislead the public in the manner referred to in Article 2.34quater(2) BCIP; an amendment to the regulations governing use of the mark has been mentioned in the register in breach of Article 2.34sexies(2) BCIP unless the proprietor of the mark, by further amending the regulations governing use, complies with the requirements of that article. Invalidity: According to Article 2.34nonies BCIP, in addition to the grounds for invalidity provided for in Article 2.2bis BCIP, with the exception of Article 2.2bis(1)(c) BCIP concerning signs or indications that may serve, in trade, to designate the geographical origin of the goods or services, and Article 2.2ter BCIP, a collective mark that is registered in breach of Article 2.34quater BCIP shall be declared invalid unless the proprietor of the mark, by amending the regulations governing use, complies with the requirements of Article 2.34quater BCIP.

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: Trademarks that are described as such when the marks are applied for and are capable of distinguishing goods or services that are certified by the proprietor of the mark in respect of material, mode of manufacture of goods or performance of services, quality, accuracy or other characteristics, with the exception of geographical origin, from goods and services that are not so certified (Art. 2.35bis(1) BCIP).
- There are certain unique provisions in the law of this jurisdiction in relation to the cancellation of certification marks on absolute, relative, non-use or other grounds, as follows:
 - **Revocation:** Article 2.35nonies BCIP states: In a d
 revocation provided for in Article 2.27, the rights of the proprietor of a certification mark shall be revoked on the following grounds: the proprietor no longer complies with the requirements set out in Article 2.35bis(2); the proprietor does not take reasonable steps to prevent the certification mark being used in a manner that is incompatible with the conditions of use laid down in the regulations governing use, including any amendments thereto mentioned in the register; the manner in which the certification mark has been used by the proprietor has caused it to become liable to mislead the public in the manner referred to in Article 2.35quater(2); an amendment to the regulations governing use of the certification mark has been mentioned in the register in breach of Article 2.35sexies(2) unless the proprietor of the mark, by further amending the regulations governing use, complies with the requirements of that article. Invalidity: According to Article 2.35decies BCIP, in addition to the grounds for invalidity provided for in Articles 2.2bis and 2.2ter, a certification mark that is registered in breach of Article 2.35quater shall be declared invalid unless the proprietor of the mark, by amending the regulations governing use, complies with the requirements of Article 2.35quater.

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